

[About EDS](#)[About us](#)[Our board](#)[What we do](#)[Policy](#)[Litigation](#)[Events](#)[Areas of work](#)[Publications](#)[Bookstore](#)[Documents](#)[Get involved](#)[Support EDS](#)[Donate](#)[Young lawyer
fund](#)[Students](#)**Support
EDS****Environmental
Defence
Society**

[< All media statements](#)

EDS files legal proceedings challenging the lawfulness of plantation forestry regulations

30 January 2023

The Environmental Defence Society says that the National Environmental Standards for Plantation Forestry (NES-PF) are failing to protect the coastal marine environment from the significant adverse effects of sedimentation associated with plantation forest harvesting. This has been starkly apparent in Tairāwhiti, but it is a nationwide problem.

"The NES-PF permits harvesting and associated earthworks of plantation forestry on erosion prone land. We have filed legal declarations in the Environment Court challenging the lawfulness of that regime, which we consider is a breach of the Resource Management Act 1991," says EDS CEO Gary Taylor.

"A major cause of marine sediment is from harvesting activities undertaken by plantation forestry operations. This is particularly so during the approximately 7 year 'window of vulnerability' post clear fell harvesting on high erosion risk land.

"During and after high rainfall events, which are becoming more regular, steep land that has recently been harvested is more susceptible to landslide and erosion. This generates sediment that runs off into the receiving marine environment, smothering aquatic life. In the Marlborough Sounds, this pollution is resulting in significant adverse effects on marine flora and fauna.

"The Government is currently reviewing the NES-PF to address permanent exotic carbon forests, but the permissive regime for harvesting is outside of the terms of reference. This makes no sense. The NES-PF is not fit-for-purpose for managing plantation forestry harvesting activities, especially in this climate-changing world which is set to deliver bigger and more frequent storms.

"It's time for the plantation forestry sector to start internalising the costs of its significant adverse effects, instead of making downstream communities and environments pay," Mr Taylor concluded.

Donations to support this case are welcome and can be made [here](#).

+64 9 302 2972

manager@eds.org.nz



Donate to EDS

Become a Supporter

Newsletter signup

© Copyright 2026 Environmental Defence Society • T&Cs